can be used to show that the Moore and Baker invoice was not included in the fee disputes and thus, not included in the judgment. Also, in entering the judgment, the Court stated that the interpretation of the deed of trust was beyond the scope of the judgment, but that ruling did not interpret the deed of trust. Presented with a quiet title action, the Court can now decide the deed of trust issue.

As to whether the judgment amount is correct, Plaintiffs point to their declaratory relief claim (as noted above, their fraud claim is not properly before the Court). The Court is not convinced that Plaintiffs can attack the judgment amount in this case through a declaratory relief claim.

Code of Civil Procedure section 683.170 provides a method for a judgment debtor to challenge the interest on the renewed judgment in that action. It must be brought within 60 days, but is not the exclusive remedy. Section 683.170 appears to require such a challenge to be brought in the case where the judgment exists. Further, the 60 day deadline has long passed. Plaintiffs argue that they should be allowed to challenge the amount of interest in this case based on equitable procedures, but they provide no case or statute that would allow this challenge here. Thus, Plaintiffs have not shown that they have a right to challenge the interest in renewed judgment in this case.

The Court finds that Plaintiffs have not shown a probability of prevailing on any of their claims and therefore the Court cannot issue a preliminary injunction. (*Butt v. State of California* (1992) 4 Cal.4th at 678 [A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.].)

The parties' requests for judicial notice are granted as appropriate and unopposed.

11. 9:00 AM CASE NUMBER: L24-03854
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELI UPDEGRAFF
***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**
FILED BY: JPMORGAN CHASE BANK, N.A.
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Plaintiff JP Morgan Chase's Motion to Set Aside Dismissal and to Enter Judgment under Stipulation pursuant to Cal. Code of Civ. Proc § 664.6 is **<u>granted</u>**. The Court will execute the Proposed Order lodged November 14, 2025. No appearance is required at the hearing on February 11, 2026.

<u>Background</u>

On September 19, 2025, Plaintiff JP Morgan Chase ("Plaintiff") filed a Motion to Set Aside Dismissal and to Enter Judgment Under Stipulation against Defendant Keli Updegraff ("Defendant"). The Motion was supported by a Memorandum of Points and Authorities, Declaration of Counsel Brian Langedyk, Notice, Amended Notice, and a Proposed Order. Proof of service evidences service to Defendant on September 19 and November 25, 2025.

In this debt collection case, both parties agreed to the terms of stipulation memorializing a settlement agreement outside of court and requested that the court retain jurisdiction to enforce the terms of the agreement if the Defendant breached the terms of the settlement agreement. Defendant has defaulted on the payment arrangement under the stipulation agreement. The business records of Plaintiff's Counsel indicate that the last payment was received on February 27, 2025. Plaintiff now seeks to have the dismissal set aside and judgment entered, as agreed by the parties.

Analyses

Code of Civil Procedure § 664.6 provides that if parties to a pending litigation stipulate, in writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment under the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. "In a writing signed by the parties outside the presence of the court..." means that the litigants agreed to the settlement in the same manner and the settlement agreement may be enforced against all parties. *Elyaoudayan v. Hoffinan*, (2003) 104 Cal.App. 1421, 1428.

Additionally, California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Defendant's consent to the granting this motion. The Court finds that Defendant consents to the entry of judgment against her consistent with the terms of the settlement agreement.

Ruling

Plaintiff's Motion is **granted**. The Court will execute the Proposed Order lodged November 14, 2025. No appearance is required at the hearing on February 11, 2026.

12. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: SHANNA FARRELL'S CROSS COMPLAINT
FILED BY: FACCHINI, PRIMO
TENTATIVE RULING:*

Before the Court is Cross-Defendant Primo Facchini ("Cross-Defendant" or "Facchini")'s Demurrer. The Demurrer relates to Cross-Complainant Shanna M. Farrell ("Cross-Complainant" or "Farrell")'s